

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH**

In re: Matthew Sellers

Docket No. 2024-13

**Decision and Order
Allegations of Unauthorized Practice**

Board of Allied Mental Health:

Tammy Austin, professional member, Chair
Marjorie Trombly, professional member
Dana Poverman, professional member, *ad hoc*
Judith Wernecke, public member, *ad hoc*

Appearances:

Ultan Doyle, Esq., Prosecuting Attorney
Robert Wubbenhorst, IT member
Matthew Sellers, Respondent, represented himself

Administrative Law Officer:

Michael S. Kupersmith, Esq.

Exhibits:

#1: screenshot, Respondent's website
#2: Respondent's certificate of completion, Internal Family Systems
#3: training materials, Internal Family Systems Institute (IFSI)
#4: screenshot, later version of Respondent's website

A: email from IFSI dated Jan. 22, 2024
A1: excerpt from A, with a portion highlighted

Introduction

This matter came before the Board of Allied Mental Health on September 19, 2024, on the Specification of Charges filed by the State on February 27, 2024. The hearing was conducted remotely pursuant to rules adopted by the Office of Professional Regulation (OPR). Ultan Doyle, Esq. represented the Office of Professional Regulation. Respondent Matthew Sellers appeared and represented

himself. Based upon the pleadings and the credible evidence presented, the Board finds that the following facts have been proved by a preponderance of the evidence.

Findings of Fact

1. On or about June 26, 2023, Matthew Sellers (“Respondent”) of Montpelier, Vermont, who is a registered Massage Therapist, Bodyworker, or Touch Professional, advertised on his website <https://matthewssellers.com/> that among the services he provided was Internal Family Systems (“IFS”) Therapy and Somatic IFS Therapy. See exhibit #1.
2. Respondent’s website described IFS as “a powerfully transformative, body centered, evidence-based model of psychotherapy.” Exhibit #1.
3. At the time, Respondent was not licensed by the State of Vermont in any mental health related profession, nor had he been entered on the Roster of Non-licensed and Noncertified Psychotherapists.
4. On or about August 15, 2023, Respondent admitted to OPR investigator Marcello D’Alessandro that he had been practicing IFS Therapy since 2019 and that he had completed Level II IFS Therapy training. See exhibit #2.
5. Respondent explained to Mr. D’Alessandro that IFS therapy is a form of psychotherapy and that he had used IFS therapy to treat bodywork clients with minor depression.
6. After being interviewed by Mr. D’Alessandro, the Respondent modified his website. Although he still provides Internal Family Systems Therapy and Somatic IFS Therapy, he has added a disclaimer which reads as follows:

Matthew Sellers is an Internal Family Systems Practitioner and **Not** a Licensed Clinician. The IFS institute trains and allows anyone that Completes a Level One training to fully practice IFS with the public.

See exhibit #4 (Emphasis in original.)

7. The Respondent testified that he does provide bodywork for clients who appear to suffer from minor depression. He claims that he did not provide psychotherapy, but instead taught his clients how the mind works and about “parts” of the mind like depression. He testified that in the past he

had his clients “unburden,” but that he no longer does that. He admits that “unburdening” is part of the psychotherapeutic process. Because he no longer engages in “unburdening,” he believes that he is no longer practicing psychotherapy.

Conclusions of Law

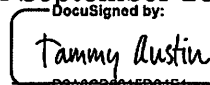
The Respondent is charged with practicing mental health counseling without authority in violation of 3 V.S.A. § 127(b)(2)(A) and 26 V.S.A. §§ 3262(a) and 4084. As defined by 26 V.S.A. § 4082 (4), “Psychotherapy” means the provision of treatment, diagnosis, evaluation, or counseling services to individuals or groups, for a consideration, for the purpose of alleviating mental disorders.. . .”

There is no dispute that the Respondent holds himself out to the public as providing Internal Family Systems therapy. He admits that he continues to teach bodywork clients about models or “parts” of the mind. His attempt to distinguish between teaching about the IFS system and providing IFS therapy is unconvincing. The Board concludes that the State has proved by a preponderance of the evidence that the Respondent is providing psychotherapy (as defined in 26 V.S.A. § 4082(4)) without authority.

ORDER

As authorized by 3 V.S.A. § 127(b)(2)(A), the Board of Allied Mental Health hereby assesses the Respondent the sum of **one thousand five hundred dollars (\$1500.00)** for practicing a regulated profession without authority. Said sum shall be paid to the Director of the Office of Professional Regulation within ninety (90) days of the Date of Entry of this Order.

Dated at Montpelier, Vermont this ____ day of September 2024,

Docusigned by:

02A0C80015D04F1...
Board of Allied Mental Health
By: Tammy Austin, Chair

Date of Entry: 9/26/24

APPEAL RIGHTS

This is a final administrative determination by the Vermont Board of Allied Mental Health. A party aggrieved by a final decision by the Board may appeal this decision by filing a written Notice of Appeal with the Director of the Office of Professional Regulation, 89 Main Street, 3rd floor, Montpelier, VT 05620-3402, within 30 days of the date of entry of this order. If an appeal is filed, the Director of the Office of Professional Regulation shall assign the case to an Appellate Officer. The appeal shall be conducted based on the record created before the Board. In cases of alleged irregularities in procedure before the Board not shown on the record, proof of that issue may be taken by the Appellate Officer. 3 V.S.A. §§ 129(d) and 130a. A stay of this Order may also be requested.

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
Matthew Sellers) **Docket No. 2024-13**
)

SPECIFICATION OF CHARGES

NOW COMES the State of Vermont and makes the following Charges against the Respondent, Matthew Sellers:

Board Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the “Board”) has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after a disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. § 129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 78; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation (“OPR”).

Statement of Facts

2. On or about June 26, 2023, Matthew Sellers (“Respondent”) of Montpelier, Vermont, who is a registered Massage Therapist, Bodyworker, or Touch Professional, advertised on his website <https://matthewssellers.com/> that among the services he provided was Internal Family Systems (“IFS”) Therapy and Somatic IFS Therapy.
3. Respondent’s website described IFS as “a powerfully transformative, body centered, evidence-based model of psychotherapy.”
4. At the time, Respondent was not licensed by the State of Vermont in any mental health related profession, nor had he been entered on the Roster of Nonlicensed and Noncertified Psychotherapists.
5. On or about August 15, 2023, Respondent admitted to an OPR investigator that he had been practicing IFS Therapy since 2019 and that he had completed Level II IFS Therapy training.
6. Respondent explained that IFS Therapy is a form of psychotherapy and said that he had used IFS Therapy to treat people with minor depression.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

Violation One: 3 V.S.A. § 127(b)(2)(A) The Attorney General or an attorney assigned by the Office of Professional Regulation may elect to bring an action seeking only a civil penalty of not more than \$2,500.00 for practicing or permitting the practice of a regulated profession without authority before the board having regulatory authority over the profession or before an administrative law officer.

7. The State re-alleges and incorporates Paragraphs 2 through 6 above.
8. A person may only practice mental health counseling unless that person is licensed by the State of Vermont (26 V.S.A. § 3262(a)) or entered on the Roster of Psychotherapists Who are Nonlicensed and Noncertified (26 V.S.A. § 4084).
9. Under 26 V.S.A. § 4082, “‘Psychotherapy’ means the provision of treatment, diagnosis, evaluation, or counseling services to individuals or groups, for a consideration, for the purpose of alleviating mental disorders.”
10. Paragraphs 2 through 6 demonstrate that Respondent practiced psychotherapy without being licensed or rostered when he used IFS to treat people with depression.
11. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for a civil penalty because Respondent practiced a regulated profession without authority in violation of 3 V.S.A. § 127(b)(2)(A).

Relief Requested

The State of Vermont respectfully requests that Respondent be assessed a monetary civil penalty pursuant to 3 V.S.A. § 127(b)(2)(A).

DATED at Vermont this 27th day of February, 2024.

STATE OF VERMONT
SECRETARY OF STATE

By: Ultan Doyle
Ultan Doyle
State Prosecuting Attorney
Office of Professional Regulation
802.828.1217
ultan.doyle@vermont.gov

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402